

**BEFORE A
COMMISSION ON PROFESSIONAL COMPETENCE
SALINAS UNION HIGH SCHOOL DISTRICT**

In the Matter of the Dismissal of:

**CHRISTOPHER BRABANT, a Permanent Certificated
Employee, Respondent.**

OAH No. 2024080851

DECISION

A Commission on Professional Competence (Commission) heard this matter by videoconference on January 13 through 17 and 21 through 24, 2025. The Commission's members are Milton Hambly, King City Union School District; Logan Loya, Roseville Joint Union High School District; and Administrative Law Judge Juliet E. Cox, State of California, Office of Administrative Hearings, who presided.

Attorneys Gabriela D. Flowers and Selina Ayala-Patlán represented the Salinas Union High School District.

Attorney Melissa Yoest represented respondent Christopher Brabant, who was present throughout the hearing.

The Commission received oral opening statements and testimonial and documentary evidence. The record remained open for the parties to provide written closing arguments. They provided these documents timely. The record closed and the matter was submitted for decision on April 4, 2025.

FACTUAL FINDINGS

1. The Salinas Union High School District operates several middle and high schools in Monterey County.

2. Respondent Christopher Brabant began serving as a high school social studies teacher at the District's Everett Alvarez High School (EAHS) during the fall semester of the 2016–2017 academic year. He continued in this role until February 2024, when the District placed him on administrative leave.

3. On June 25, 2024, acting in his official capacity as the District's former Superintendent, Dan Burns presented a Notice of Intent to Dismiss and Statement of Charges against respondent to the District's Board of Trustees. The District's Board adopted these charges, stating the District's intent to dismiss respondent from employment.

4. Burns served the Notice of Intent to Dismiss and Statement of Charges to respondent on June 26, 2024. Respondent timely requested a hearing.

Respondent's Education and Experience

5. Respondent graduated from California State University, Fullerton, in 2012 with a bachelor of arts degree. He then enrolled in a teaching credential program at California State University, Monterey Bay.

6. The evidence does not establish where respondent taught before joining the EAHS faculty in 2016. His student teaching during the credentialing program was at Watsonville High School, and he also had undergone some training at EAHS before becoming an EAHS faculty member.

7. At EAHS, respondent taught World History (a 10th grade course), United States Government (a 12th grade course), and Ethnic Studies (a 9th grade course).

8. During his tenure at EAHS, respondent has been active in his union. He also has served as a department chair and as president of the faculty senate.

Classroom Mismanagement

9. The District alleges numerous ways over several years in which respondent not only failed to prevent but encouraged student misconduct in his classroom.

PERMITTING UNROSTERED STUDENTS TO DISRUPT CLASSES

10. Over several years, and despite repeated admonitions from multiple administrators at EAHS, respondent welcomed students into his classroom during instructional periods who were not enrolled in his classes for those periods (or, in some cases, who were not enrolled in any of his classes that semester). Some students, on some days, stayed only for short times. Other students, or on other days, spent entire class periods or multiple class periods in respondent's classroom rather than in the classrooms to which those students were assigned during those class periods. In addition to missing their own instruction, these guest students often interfered with respondent's students' ability to receive instruction from respondent. Numerous examples of such conduct are in evidence.

April 2022

11. In April 2022, EAHS Principal¹ Katherine Redondo encountered students on two occasions during instructional periods who had left their classes to visit respondent's classroom. These students had gone to respondent's classroom to obtain instant noodles, for which they paid respondent. They also had prepared the noodles by adding boiling water. On one of these occasions, Redondo encountered a student in a hallway who should have been in respondent's classroom, but who explained to Redondo that she had left respondent's classroom to avoid conflict with a student who had come from a different class to get noodles.

12. Redondo met with respondent regarding her concern that students were skipping their own classes and disrupting his classes to get snacks. She summarized their meeting in a memorandum to respondent dated April 21, 2022, that instructed him specifically that "students that are not on your roster" should never "be in your classroom during instructional time."

October 2022

13. On October 5, 2022, EAHS Assistant Principal² Guillermo Arenas received a telephone call from a parent who stated that one of her child's teachers had informed her that her child was rarely present for that teacher's class. Instead, the parent reported, and Arenas confirmed, that the child usually skipped the child's

¹ Redondo was the principal at EAHS between December 2019 and June 2023.

² EAHS has four assistant principals. Arenas was an assistant principal at EAHS between fall 2020 and spring 2024.

assigned class and sat in respondent's classroom instead. The child was not enrolled in any class with respondent; in fact, this student provided a written statement to Arenas suggesting that the student did not even know respondent's name.

14. On October 21, 2022, a different student's parent called Arenas for help locating the parent's child. Soon thereafter, an officer from the Salinas Police Department also called Arenas about the same student. The parent told Arenas that the student had been missing from home for several days, but that the parent's location monitoring service for the student's cell phone showed the parent that the student's cell phone was at the EAHS campus. The student was not enrolled in any class with respondent. Nevertheless, Arenas located the student in respondent's classroom, during an instructional period.

15. Respondent testified that although the student Arenas had found in respondent's classroom on October 21, 2022, had never been his student, he had developed a relationship with her in which she would confide in him. He went on to identify several other students, all with girls' names, for whom he filled a similar role.

16. Respondent denied having taken time away from his own students to interact with students who were visiting his classroom, stating instead that he attended to student guests only while his assigned students were working independently. In light of all evidence, this testimony is not credible.

17. Arenas prepared a memorandum to respondent, dated November 4, 2022, and titled "Letter of Reprimand." The memorandum repeated Redondo's earlier direction to respondent that he must not allow "students not on your roster to visit your class during instruction time." The memorandum also stated clearly the basis for this directive:

Your conduct negatively impacted student attendance. Students are being marked absent or truant. It is also affecting the efficient operation of our attendance department. Your conduct has also resulted in parents worrying about the whereabouts of their students. Your conduct also negatively impacts instructional time for your students and the students not on your roster who visit your classroom. Your actions also negatively impact the instructional programs of your colleagues.

18. At Arenas's invitation, respondent prepared a written statement in response to the Letter of Reprimand. This statement characterized respondent's hosting students who were not in his class as "helping" and "supporting" them because they were "overlooked." It stated further that respondent had seven students for whom he saw himself as a special "champion," and who he helped with "a range of problems: from boyfriend drama, food insecurities at home, anxiety, depression, and child abuse." Finally, respondent's statement asserted that because EAHS administrators had directed him no longer to host these seven students in his own classroom while they skipped their other classes, the students had suffered multiple serious educational setbacks, including "stopped coming to school altogether" and "hospitalized for an overdose."³

³ No evidence addressed whether these statements by respondent about these students were true.

April 2023

19. In mid-April 2023, during one of respondent's class periods, several students engaged in an argument over where some of them would sit. The students were arguing not over student seats in the classroom, but over the privilege to sit behind respondent's desk. The students who had claimed these positions, and refused to yield them, were not enrolled in respondent's class for that period. Eventually, the students who were enrolled in respondent's class for that period left the classroom to avoid a physical fight with the intruding students.

20. On April 25, 2023, respondent was not at school. The District assigned substitute teacher Bryan Hernandez to cover respondent's classes. Hernandez had significant substitute teaching experience during the 2022–2023 academic year, including experience in other classrooms at EAHS.

21. During each of the first three instructional periods, Hernandez encountered four to six students in respondent's classroom who were not on that period's class roster. Late in the morning, before lunch, he emailed the school secretary to say that he did not want to return to the classroom on subsequent days because the students were so unruly. Hernandez acknowledged that students in other classrooms and at other schools also were unruly, but testified credibly that the students he encountered in respondent's classroom were by far the most insolent and unmanageable that he ever had encountered. He noted as well that students told him consistently that respondent tolerated similar behavior.

Summer 2023

22. On most mornings during the summer school session in 2023, lead Campus Safety and Security Officer (SSO) Adriana Espinoza noticed a former EAHS

student she recognized entering respondent's classroom. Espinoza assumed at first that the student was enrolled in summer school. Late in the summer session, however, she learned that the student was not enrolled in any EAHS summer course.

December 2023

23. On December 8, 2023, EAHS English teacher Brian Tumminelli covered respondent's fifth-period class because respondent had been called away from the classroom. At the beginning of the class period, several students who were not on the class roster came into the classroom and sat with friends. They resisted Tumminelli's efforts to make them leave to go to their own classes. During the class, additional students came to the door to seek entry. Some of these students told Tumminelli falsely that they were on respondent's class roster for that period.

January 2024

24. In mid-January 2024, Arenas received a complaint from a student about other students smoking or vaping near the complaining student during a class period in respondent's classroom. Arenas investigated this complaint and took written statements from several students (none of whom testified at the hearing). Some of these students reported that respondent routinely tolerated students in his classroom during instructional periods who were not assigned to respondent's classes for those periods, and that these students usually congregated in the back of the classroom to play music, talk, and smoke or vape nicotine or cannabis. Other students reported that they often skipped their assigned classes to spend time instead in respondent's classroom. One such student explained that he visited respondent's classroom rather than attending a class that he found "boring." Another explained that he visited respondent's classroom because respondent "usually lets us stay there."

25. On January 23, 2024, EAHS Principal⁴ Miguel Ocampo saw several students congregating outside respondent's classroom during an instructional period. Ocampo told the students to return to their classes. He also went into respondent's classroom and saw several students who he knew not to be respondent's students during that class period.

February 2024

26. In addition to social science courses, respondent was responsible during the 2023–2024 academic year for a "homeroom." About 25 students were assigned to respondent's 2023–2024 academic year homeroom. Homeroom sessions occurred only once per week, on Thursdays.

27. During homeroom sessions, respondent sometimes needed to make announcements to the class about upcoming school events. In addition, during some homeroom sessions, students received special presentations on topics such as mental health and personal relationships. Aside from these purposes, a homeroom session functioned as a study hall or help period. Students in all homerooms, including in respondent's homeroom, often would leave their assigned homerooms to seek special help from teachers in their academic classes, or to join classmates from different homerooms to work on collaborative projects. Although homeroom sessions did not have lesson plans or syllabi, their intent was not simply for students to socialize. The District considered homeroom to be an instructional period, and respondent knew that homeroom qualified as an instructional period.

⁴ Ocampo has been the principal at EAHS since July 2023.

28. Two students who were in respondent's 2023–2024 academic year homeroom testified credibly that respondent's homeroom sessions usually were "wild." These students testified that many students from other homerooms would come to respondent's homeroom, not to ask respondent for help or to collaborate with classmates on schoolwork but rather to smoke or vape, socialize, and play music. These students testified that the classroom often held many more students during homeroom than chairs.

29. On February 15, 2024, respondent hosted an especially crowded and chaotic homeroom session. Forty or more students were present, in a room with at most 36 seats. SSO Clarissa Hernandez, who visited the classroom during that homeroom session (as summarized below in Findings 43 through 46) testified credibly that the room was dark and smoky, and that some students were playing "gangster" style music from the computer at respondent's desk.

30. Respondent agreed that he had admitted numerous students to his homeroom on February 15, 2024, who had no instructional or homeroom-related reason to be there. He testified that he did so because he believed that allowing these students to visit his classroom during homeroom might discourage them from visiting his classroom during other instructional periods.

TOLERATING IN-CLASS ALCOHOL AND CANNABIS USE

31. Students regularly used cannabis, usually with vaping devices, in respondent's classroom and in his presence. They also sometimes drank alcohol. Respondent was aware that students engaged in these behaviors. Occasionally he chastised or discouraged them, but he never made disciplinary referrals for alcohol or drug use. Moreover, through his own behavior as well as through decorations that he

allowed students to display in his classroom, respondent conveyed to students that he condoned both cannabis and alcohol use. Multiple examples of such conduct are in evidence.

32. Both students whose testimony is summarized in Finding 28 stated specifically and credibly that they regularly saw other students vaping during homeroom. Although vaping students sometimes attempted to conceal their misbehavior, such as by ducking behind friends, the two student witnesses said that the cannabis smell in the classroom should have made any reasonable person know that people were using cannabis. Several other students provided credible written statements (but not testimony) to the same effect.

33. EAHS has a formal disciplinary referral procedure. A faculty member who suspects a student of using alcohol or cannabis during school must call an administrative staff member immediately, and also must make a “major referral” for discipline. Although District records show that respondent occasionally mentioned concerns about various students’ drug or alcohol use to EAHS administrators, they also show that he never made any disciplinary referrals for such behavior.

Classroom Artwork

34. At least one wall of respondent’s classroom was a bulletin board, on which people could use thumbtacks or push pins to hang up lightweight items. Items on display in respondent’s classroom in February 2024 included:

a. A cartoonish drawing of a human hand holding a rolled cigarette. The drawing also includes a depiction of a cannabis leaf. It is labeled “Los Marijuanos” and is decorated around the perimeter with additional drawings of rolled cigarettes.

b. A drawing of a woman wearing a business suit and pillbox hat, who is standing outside two saloon doors. The woman's shoes are not on her feet, and her knees are wobbly. She holds a bottle, and a carton with other bottles is near her feet. The drawing is labeled "La Borracha."

c. A drawing of a cannabis leaf, encircled by a rainbow. This drawing was above a white board and directly below a District-issued poster listing conduct expectations for EAHS students.

35. Respondent testified that the "Los Marijuanos" drawing was not on display in his classroom before he went on administrative leave in February 2024. According to this testimony, a student had hung the drawing on the wall one day after school, and respondent found it the next morning. Rather than simply removing the drawing, he covered it with the "La Borracha" drawing, intending to speak to the student who had hung up the "Los Marijuanos" drawing about its inappropriateness for the classroom. District administrators placed him on administrative leave that same day, however, and he was not able either to speak to the student or to remove the drawing.

36. The testimony summarized in Finding 35 is not credible. Multiple credible witnesses testified that both the "Los Marijuanos" and the "La Borracha" drawings were on display in respondent's classroom throughout the 2023–2024 academic year.

37. Respondent testified as well that a student had drawn and posted the "La Borracha" drawing during the summer session in 2023. He said that the student had told him that the drawing depicted a flight attendant. Respondent professed not to have known until the District commenced this proceeding to terminate his

employment that “borracha” in Spanish refers to a woman who is intoxicated by alcohol. This testimony about respondent’s ignorance of Spanish is not at all credible.⁵

January 2024

38. As noted above in Finding 24, a student complained to Arenas in mid-January 2024, about other students smoking or vaping near her during a class with respondent. In conversation with Ocampo about this complaint, respondent acknowledged that he had seen a student vaping in his class on that day. Respondent did not summon an SSO or refer that student for discipline.

39. In March 2024, while respondent was on administrative leave as summarized above in Finding 2, a student who followed respondent on Instagram sent him two photos. Both photos depict a student in respondent’s classroom, standing while drinking brown liquid from a bottle with a Hennessy Cognac label. Both photographs include text: “Good way to start off the day at school.” At least one other student is visible in the photographs’ background.

40. The photographs indicate that someone took them on January 18, 2024, at 9:07 a.m., although no evidence confirms that this date and time indication is true. Respondent was in his classroom on January 18, 2024, at 9:07 a.m., but testified that he does not recall having seen any students either taking or posing for these photographs. Respondent recognizes the student in the photographs, but is not sure

⁵ Later in the hearing, respondent used the Spanish word “chismosa” to describe someone, instead of using the English word “gossip.” He also testified proudly about having numerous family members with Mexican heritage.

(and no evidence establishes) whether this student was on respondent's class roster for a morning class period in the spring 2024 semester.

41. The photographs in evidence include no accompanying message, but respondent testified that the student who sent them asked whether the photos had any relationship to respondent's administrative leave. Respondent forwarded copies of the photographs to his union representative, but not to any District staff member.

42. The photographs described in Findings 39 and 40 show that the students involved in making them were comfortable drinking alcohol, or simulating drinking alcohol, openly in respondent's classroom with other students present. If respondent had been supervising his class properly, he could not have overlooked these students. And if respondent saw these students posing for and taking these photographs, he should have referred them immediately for discipline, regardless of what liquid actually was in the bottle.

February 2024

43. The overcrowded, chaotic homeroom session on February 15, 2024, came to SSO Hernandez's attention when a student approached her outside the classroom to tell her about a "situation" in the classroom. At about the same time, lead SSO Espinoza received a report from a different SSO who overheard a student elsewhere on the EAHS campus saying that students in respondent's classroom were passing around a liquor bottle. Espinoza directed SSO Hernandez and SSO Sandra Garcia to go to respondent's classroom to investigate.

44. SSO Hernandez testified credibly that when she entered respondent's classroom on February 15, 2024, the room smelled of both cannabis and alcohol. She did not see any students drinking or vaping, however. She also did not see respondent

until he stepped forward from a corner and asked for her help identifying students who should and should not be in the classroom.

45. After SSOs Hernandez and Garcia came to the classroom, they summoned Espinoza. Espinoza testified that the District has authorized SSOs to walk through classrooms to look for and at items that are in plain view. An SSO may search an individual student's person or possessions only with individualized probable cause to believe that the student has a prohibited item, however, and only with an administrative staff member present. Espinoza and Garcia walked through the classroom, but observed no vaping devices or liquor bottles.

46. The SSOs attempted several times to summon an administrative staff member to the classroom, but no administrative staff member responded promptly. They concluded that waiting further would be futile, because without authority to search students' persons or possessions they would not find any alcohol bottle or vaping device or identify any particular student who had been drinking, smoking, or vaping. As the SSOs left the classroom, respondent asked Espinoza whether they had found the bottle.

47. After the SSOs had left the classroom, EAHS Assistant Principal Jer Soriano arrived. He had been unable to respond sooner to the SSOs' request because he was in a meeting with other staff members and a student's parent. Soriano entered the classroom and observed many more students than seats. Several students left, and Soriano followed them out. He testified credibly that respondent asked him "did you catch the guys who were drinking?"

48. Respondent admits that he saw at least one student vaping during homeroom on February 15, 2024. Rather than calling immediately for an SSO when he

saw the student exhale vapor, respondent left his classroom and went to the classroom next door. Although respondent testified that he asked that teacher to call for an SSO, she did not do so. Respondent also testified that when SSOs Hernandez and Garcia arrived, he assumed they had come because the neighboring teacher had called, and that he pointed out the student who had exhaled vapor to SSO Garcia. This testimony is not credible; although Garcia did not testify, she provided a more credible statement noting that respondent appeared “shocked” when she and SSO Hernandez arrived. Also, numerous students who did not testify provided written statements to the effect that students smoked and vaped regularly during homeroom, in front of respondent, and he did nothing. Respondent knew that students were vaping in his homeroom on February 15, 2024, and he neither intervened to stop them nor called for any campus SSO or administrative staff member.

49. Respondent denies having seen any student drink anything he suspected to be alcohol during homeroom on February 15, 2024. Despite this denial, the testimony by Espinoza and Soriano summarized above in Findings 46 and 47 is non-hearsay evidence that respondent did understand alcohol to be present in the classroom, whether or not he saw students drink it. Moreover, several students’ written statements describe specifically that students in respondent’s homeroom on February 15, 2024, were passing around a labeled liquor bottle and discussing it loudly. Respondent knew or should have known that students were drinking alcohol in his homeroom on February 15, 2024, but he neither intervened to stop them nor called for any campus SSO or administrative staff member.

STORING SHARP AND FLAMMABLE ITEMS IN UNSECURED LOCATIONS

50. Respondent stored a set of tools for ornamental wood carving in his classroom, in his desk.⁶ The evidence does not establish whether any students ever saw respondent use these tools or knew where he stored them.

51. Respondent also kept a variety of flammable materials in his classroom, including candles and a refillable flame lighter with lighter fluid. The lighter and lighter fluid were in a locked cabinet.

52. Respondent testified that he used the lighter and lighter fluid in his Ethnic Studies curriculum, to teach students about the custom among some Native American groups of burning sage or similar aromatic plants to purify a space. He testified further that EAHS Assistant Principal Ricardo Vazquez had given him permission to burn sage outdoors, but not inside his classroom. Vazquez testified more credibly, to the contrary, that he had instructed respondent explicitly never to light sage on fire on campus.

ALLOWING UNACCOMPANIED, UNSUPERVISED STUDENTS IN THE CLASSROOM

53. At mid-day on April 25, 2023, substitute teacher Hernandez locked respondent's empty classroom and went to eat lunch. When he returned, numerous students were in the classroom. These students told Hernandez that respondent had admitted them to the room. Hernandez chased the students out of the classroom, locked it again, and went to the school office to say that he would not finish even that day in respondent's classroom.

⁶ Respondent testified that he kept these tools in a locked drawer.

54. On February 15, 2024, respondent allowed his daughter (who is an EAHS student) and her friend to spend the lunch period in respondent's classroom. Respondent was not present, and he did not leave the students under any other EAHS staff member's supervision. To his knowledge, they were alone in the classroom. The Statement of Charges alleges that respondent did not have a classroom key while these students were inside, but the evidence was not conclusive as to this allegation.

Dishonesty

55. During the several years preceding his administrative suspension in February 2024, respondent repeatedly was dishonest when speaking to EAHS and District administrative staff about his classroom practices. He told several administrative staff members, for example, that he referred students regularly to the EAHS campus wellness center, The Nest, but in truth he did not. Respondent falsely told District Assistant Superintendent for Human Resources Hector Galicia that Vazquez had authorized him to burn sage in his Ethnic Studies classes. Finally, respondent assured administrators that he would stop allowing students who were not in his courses to skip their own courses to disrupt his classroom, but he continued this practice without interruption.

56. Respondent characterized himself repeatedly, in testimony as well as in his post-hearing briefing, as holding a special, formal assignment as a "School-Wide Intervention Coordinator," with responsibility for identifying and assisting students who are experiencing mental health challenges. This statement is false. The evidence does not establish any such assignment for respondent, or any training in counseling or mental health caregiving that might have qualified him for such an assignment. To the contrary, the evidence establishes that respondent expressed interest to Redondo

in a role as an academic intervention specialist, but that no administrator ever selected him for it.

57. Respondent gave other false testimony at the hearing as well.

a. He testified that on January 23, 2024, he called for an SSO to come to his classroom because he had seen a student vaping, and that Ocampo accompanied the SSO. The evidence, including Ocampo's more credible testimony, establishes that Ocampo came to respondent's classroom of his own volition on January 23, 2024, because he had seen students outside the classroom as described in Finding 25. Respondent then testified that he had asked Ocampo to meet with him on January 24, 2024, to discuss student discipline; but Ocampo testified, again more credibly, that he had summoned respondent to a meeting because of ongoing concerns about respondent's classroom management.

b. Respondent testified that between the date the District placed him on administrative leave (February 21, 2024) and the date he met later with Galicia (April 10, 2024), he believed that the District's investigation related to the SSOs' ineffective response to his report about student vaping on February 15, 2024. He professed not to have realized until April 10, 2024, that the investigation for which the District had placed him on leave related to his own persistent tolerance for intruding students and for drug and alcohol use in his classroom. This testimony is false.

c. Galicia left his position with the District in summer 2024, and took a similar position with a different school district. Respondent posted a series of photographs, with captions, on his publicly accessible Instagram page (described below in Finding 60), depicting his trip to District headquarters to give Galicia a parting gift of sage, bundled as if for use in a purification ritual. He decorated these

photographs with various emojis, including one resembling a smiling pile of human feces. Respondent testified falsely that he intended this gift as a good faith gesture to Galicia, wishing him well in his new position, rather than as a derogatory suggestion that the District would need to purify its offices after Galicia's departure.

Additional Evidence

58. With respondent's permission, one of respondent's students advertised the student's barbering business on a white board in respondent's classroom. On one occasion (the evidence did not establish the date), respondent allowed this student to give respondent a haircut in his classroom, during a class session.

59. Respondent kept a coloring book on or in his desk, titled, "The Motivational Swear Words Coloring Book." He had torn out one page and displayed it on a bulletin board near his desk; it depicts kites, with the phrase, "Fuck Haters."

60. Respondent maintains at least one Instagram account. He testified at the hearing that he does not use social media frequently, but that he maintains an Instagram account under the name "nuclearfall0ut0" where he communicates information from time to time that is relevant to his ethnic studies class. Examples in evidence of posts and photographs from this account include only personal information about respondent, however. Respondent also used this Instagram account to solicit donations to fund his defense in this matter. Respondent testified that he is never social media "friends" with students, but then acknowledged that he has allowed current students to follow his Instagram account. Two students who testified confirmed that they follow respondent's "nuclearfall0ut0" account.

61. Numerous photographs also are in evidence from another Instagram account, under the name "EAHS.Slumped." Respondent denied responsibility for

creating or maintaining this account. He appears frequently in “selfie” photographs on it, however, all depicting students who appear to be sleeping at school. No evidence establishes that any of these students, or their parents, gave respondent permission to photograph them and distribute their photographs. To the contrary, respondent understood the students in the photos to be unaware (because they were asleep) that he was photographing them.

62. Three students testified to support respondent.

a. The first student testified that respondent allowed her to confide in him about mental health concerns, and shared his own experiences with generalized anxiety disorder. This student gave respondent her mobile telephone number, and recalls communicating with him by text message several times. This student also testified that she sometimes visited respondent’s classroom instead of attending her other classes, and that she saw other students doing likewise.

b. A second student also testified that respondent encouraged her to confide in him. When she and a boyfriend stopped seeing one another, respondent counseled her, and also allowed her to come to his classroom to avoid her former boyfriend in a class they shared.

c. A third student considered respondent very emotionally supportive. She asked respondent and his wife to serve as godparents for her quinceañera, which they did, even though she knew them only because they had been her teachers.⁷ They gave her a ceremonial gift and attended the celebration. This student also testified that

⁷ Respondent’s wife is a middle school teacher. Several of respondent’s students previously were his wife’s students.

respondent helped her overcome feelings of insecurity, by telling her that she is “pretty,” a “good person,” and “beautiful.”

63. Respondent’s defense emphasized two themes.

a. First, respondent characterized himself as being more committed than other teachers and than school administrators to his students’ mental health and social welfare. He believes that by allowing students to visit his classroom during any class period, and by counseling them about vaping rather than referring them for discipline, he supports their welfare rather than undermining their education. The examples respondent gave to show his devotion to student success were superficial and routine, however; they did not demonstrate greater attention by respondent than by any other teacher or EAHS administrator to social justice or student achievement. Furthermore, the conduct summarized above in Findings 10 through 49 harmed many students, by exposing them to cannabis, alcohol, and secondhand smoke; by communicating implicitly that cannabis and alcohol use by teens during school hours is not harmful; and by depriving them of the education they deserved from EAHS.

b. Second, respondent described numerous personal stressors that he contends affected his judgment during the 2023–2024 academic year. None of the concerns he described, either separately or together, explained his repeated failure to abide by clear, obvious directives from school administrators, or to focus his attention on teaching his students rather than on cultivating their affection. Further, respondent’s testimony that he addressed his mounting stress and anxiety with “medication” that he sometimes consumed in his classroom suggests that this medication may have impaired his judgment while he was on duty.

64. The District's Notice of Intent to Dismiss and Statement of Charges includes numerous other allegations, in detail. Because the evidence before the Commission is inconclusive as to these allegations, and because they are minor in nature, the Commission did not consider them in making its decision.

LEGAL CONCLUSIONS

1. The District bears the burden in this matter of proving facts and circumstances constituting cause under the Education Code for respondent's dismissal. A preponderance of the evidence must prove these facts and circumstances. (*Gardner v. Commission on Professional Competence* (1985) 164 Cal.App.3d 1035, 1038-1039.)

2. The Commission has considered all admissible testimonial and documentary evidence, and weighed all witnesses' credibility, in making the factual findings above. These findings reflect a preponderance of the evidence.

Causes for Dismissal

3. The District alleges four statutory causes for respondent's dismissal: immoral conduct (Ed. Code, § 44932, subd. (a)(1)), dishonesty (*id.*, subd. (a)(4)), evident unfitness for service (*id.*, subd. (a)(6)), and persistent violation of, or refusal to obey, reasonable regulations prescribed by the Board (*id.*, subd. (a)(8)).

IMMORAL CONDUCT

4. Courts have interpreted "immoral conduct" under the Education Code to mean conduct "indicative of corruption, indecency, depravity, [or] dissoluteness," as "shameless conduct showing moral indifference to the opinions of respectable members of the community," or as "an inconsiderate attitude toward good order and

the public welfare." (*Palo Verde Unified Sch. Dist. v. Hensey* (1970) 9 Cal.App.3d 967, 972.)

5. Complainant characterizes respondent as having engaged in immoral conduct by allowing students to consume cannabis and alcohol in his classroom, by failing to refer such students for discipline, and by lying to campus administrators about how he handled students who he suspected of using cannabis or alcohol. The Commission concurs that such conduct, by a high school teacher, is immoral. The Commission concludes further that the matters stated in Findings 31 through 33 and 38 through 49 establish that respondent did engage in immoral conduct constituting cause to dismiss him from employment.

6. Complainant alleges that respondent acted immorally by permitting students to put "insignia of drugs, alcohol, and gangs" in his classroom, along with "other dangerous and suspicious items" including flammable and sharp items. The matters summarized in Findings 34 through 36 show that respondent displayed student artwork celebrating cannabis and alcohol, although not "gangs"; and the matters summarized in Findings 50 and 51 show that he kept flammable and sharp items in the classroom.

a. Respondent acted immorally by displaying student artwork in his classroom that celebrated cannabis and alcohol use.

b. The Commission does not find respondent's storage in his classroom of candles and lighter fluid, or of wood carving tools, immoral.

7. Complainant also characterizes respondent as having engaged in immoral conduct by allowing students to use his classroom without supervision, and by leaving students in the classroom without taking his key. The matters summarized

in Findings 53 and 54 establish that respondent did allow students to be in the classroom when respondent was not, although the matters stated in Finding 54 do not establish that he left students in the classroom when he did not have the key. The Commission does not find this conduct immoral, however.

DISHONESTY

8. Complainant accuses respondent of dishonesty in communicating with EAHS administrative staff members about referring students for counseling or discipline, about calling on campus SSOs for assistance, about tolerating vaping in his classroom, and about managing guest students in his classroom. The matters stated in Findings 37, 52, and 55 through 57 show respondent to have been dishonest to EAHS administrators and to the Commission about these topics. This dishonesty is cause to dismiss respondent from employment.

PERSISTENT REFUSAL TO OBEY REASONABLE REGULATIONS

9. District Board Policy 4019.21 requires teachers to maintain high ethical and professional standards, and specifically to protect students from conditions “harmful to learning or to health and safety.” In addition, Board Policy 5000 requires teachers to “promote student welfare and academic achievement.” The matters summarized in Findings 10 through 49 establish that respondent failed repeatedly to follow these policies, and the Commission finds that this failure is cause for his dismissal.

EVIDENT UNFITNESS FOR SERVICE

10. The Education Code authorizes a school district to dismiss a permanent certificated employee who is “clearly not fit, not adapted to, or unsuitable for teaching,

ordinarily by reason of temperamental defects or inadequacies." (*Woodland Joint Unified Sch. Dist. v. Commission on Professional Competence* (1992) 2 Cal.App.4th 1429, 1444.) The Commission must evaluate "unfitness," in this context, with reference to several criteria, including likelihood and degree of adverse impact on students and fellow teachers, proximity or remoteness in time of the relevant conduct, extenuating or aggravating circumstances, praiseworthiness or blameworthiness of the teacher's motives, and likelihood of recurrence. (*Morrison v. State Board of Education* (1969) 1 Cal.3d 214, 229-230.) In addition, the Commission must evaluate whether the conduct demonstrating unfitness "is caused by a defect in temperament." (*Woodland*, 2 Cal.App.4th at p. 1445.)

Adverse Impact on Students

11. Cannabis and alcohol use by adolescents is harmful to their mental and physical health. A teacher who tolerates student use of these drugs at school harms the students using these drugs and their classmates, both by disrupting their education and by communicating approval of these harmful substances. Allowing students to skip classes to spend unstructured time disrupting respondent's classes also is harmful to all involved students. As summarized in Findings 10 through 49, respondent committed these acts and the Commission finds that respondent's conduct caused adverse impacts on students.

Proximity in Time

12. The events summarized in Findings 10 through 62 all occurred between 2021 and 2024. They are recent, not remote.

Extenuating or Aggravating Circumstances

13. As summarized in Finding 63.b, the Commission does not credit respondent's evidence regarding extenuating or mitigating circumstances for his behavior. Instead, respondent's conviction (summarized in Findings 18 and 63.a) that his conduct helped students rather than harming them is an aggravating circumstance.

Praiseworthiness or Blameworthiness of Motive

14. As summarized in Findings 18 and 63.a, respondent explained his misconduct by emphasizing his wish to "champion" and support students. This motive would be praiseworthy, but the Commission does not view respondent's conduct in the same light. Rather, respondent's behavior, to the Commission, and as summarized in Findings 10, 15, 18, 30, and 58 through 62, reflects his wish to be some students' peer, friend, or trusted confidant, despite the negative effects his behavior had on other students and on his faculty colleagues. This motive is blameworthy, not praiseworthy.

Likelihood of Recurrence

15. As summarized in Findings 12, 17, 55, and 57.a, respondent persisted in his misconduct despite numerous attempts by EAHS administrators to redirect him. He also, as summarized in Findings 30 and 63.a, testified even to the Commission that he believes his conduct to have served his students' welfare. The totality of evidence in this matter establishes to the Commission that respondent would not alter his behavior or his student relationships if he returned to EAHS.

Summary

16. During his last several years at EAHS, respondent managed his classroom and related to his students and colleagues in a grossly unprofessional manner. His misconduct at EAHS, as well as his emphasis at hearing on excusing his conduct rather than on reforming it, justifies his dismissal from employment.

ORDER

Respondent Christopher Brabant should be dismissed from employment with the Salinas Union High School District.

DATE: 05/19/2025



JULIET E. COX

Administrative Law Judge

Office of Administrative Hearings

DATE: 05/19/2025



Milton Hambly (May 19, 2025 09:20 PDT)

MILTON HAMBLY

Commission Member

DATE: 05/19/2025



Logan Z Loya (May 19, 2025 09:23 PDT)

LOGAN LOYA

Commission Member